

1 communicate with you. In particular, you may not talk to
2 anyone about the case using your cell phones, e-mail, text
3 messages, tweets, blogs, chat rooms, comments or other
4 postings on Facebook, MySpace, LinkedIn or any other social
5 website.

6 You must not communicate with anyone else in this fashion
7 including your own family members, lawyers or people involved
8 in the trial.

9 You may notify family and employer that you have been
10 seated as a juror in the case. But if you are asked or
11 approached by anyone in any way about your jury service or
12 anything about the case, you must respond that you have been
13 ordered not to discuss the matter, and then report that
14 contact to the Court as soon as possible.

15 The Court recognizes that these rules and restrictions
16 may affect activities that you consider to be normal and
17 harmless. I will assure you that I am very aware that I may
18 be asking you to refrain from activities that may be very
19 common and very important in your daily lives. However, the
20 law requires these restrictions to ensure the parties have a
21 fair trial based on the evidence that each party has the
22 opportunity to produce and discuss. If one or more of you
23 were to get additional information from an outside source,
24 that information might not be accurate, and it may not be
25 complete. It may for some reason not be applicable to this

1 case. The parties would not have a chance to explain or
2 contradict that information because they wouldn't know about
3 it. That's why it is so important that you base your verdict
4 only on the information that you received in this courtroom.
5 You must not engage in any activity or be exposed to any
6 information that might unfairly affect the outcome of the
7 case.

8 Any juror who violates the restrictions I have explained
9 to you jeopardizes the fairness of these proceedings and a
10 mistrial could result that would require the entire trial
11 process to start over.

12 As you can imagine, this trial is a tremendous expense
13 and inconvenience to the parties, the Court and taxpayers. If
14 any juror is exposed to outside information or has any
15 difficulty whatsoever in following the instructions, please
16 notify the Court immediately.

17 If any juror becomes aware that one of your fellow jurors
18 has done something to violate these instructions, you are
19 obligated to report that to the Court as well.

20 If anyone tries to contact you about the case, either
21 directly or indirectly or send you information about the case,
22 please report this promptly as well. These restrictions must
23 remain in effect throughout the entire trial.

24 Once the trial over, you may resume your normal
25 activities. At that point, you will be free to read or

1 research anything you wish. You will be able to speak or
2 choose not to speak about the trial to anyone. You may write,
3 text, post or tweet about the case if you choose to do so at
4 the end. The only limitation is that you must wait until
5 after the verdict and you have been discharged from your jury
6 service.

7 With that, we are going to take a nice recess. It's
8 11:15. Let's take twenty minutes, and we'll come back then
9 for opening statements. It's 11:15, and let's take twenty
10 minutes, which means it will be 11:35. I will remind you that
11 during this recess, and each recess, do not discuss the case
12 among yourselves until it's finally submitted to you for
13 deliberation. Do not discuss it among yourselves. You will
14 retire to the jury room. Have a nice break, and we'll see you
15 in twenty minutes.

16 (Whereupon, the jury left the courtroom at
17 11:15 a.m.)

18 THE COURT: Is there anything before we
19 take a recess?

20 MR. REGAN: Judge, at this time we ask the
21 Court to invoke the witness rule.

22 THE COURT: We are on the record outside
23 the presence of the jury. Both counsel are here. The
24 defendant is here with his counsel, Mr. Regan. We are outside
25 the presence of the jury that has just been selected.

1 Mr. Regan asked that the jury rule be invoked. Counsel, I'll
2 rely on you all to look out for your witnesses. I'm ordering
3 that any witness not discuss the testimony before or after
4 their testimony. They cannot be in the courtroom during other
5 testimony. So I will remind you all to look out for your
6 witnesses and instruct them appropriately. Are there other
7 preliminary matters?

8 MS. RASMUSSEN: Nothing by the State.

9 MR. REGAN: Judge, before jeopardy
10 attaches, I would ask the Court to note my oral motion to
11 reconsider the 60-455 ruling, and my continuing objection to
12 any 60-455 evidence as mentioned during opening by the State.

13 THE COURT: Your objection is noted, and it
14 is recorded. It is preserved for the record. It will be a
15 continuing objection, and it will be overruled. How long do
16 you need for opening statements?

17 MS. JONES: Judge, my opening --

18 THE COURT: You're going to have to keep
19 your voice up.

20 MS. JONES: I would say not very long, ten
21 minutes max, but I think it will be less than that.

22 MR. REGAN: The same.

23 THE COURT: Anything else?

24 MS. RASMUSSEN: Nothing further by the
25 State.

1 THE COURT: We'll stand in recess.

2 (Whereupon, a recess was taken at 11:16
3 a.m., and proceedings resumed at 11:35 a.m.)

4 THE COURT: We are on the record in State
5 of Kansas versus Scott P. Moore, 10CR2633. The parties appear
6 as before, including the defendant with his counsel. We are
7 outside the presence of the jury and ready for opening
8 statements, but I believe, Counsel, you want to take up
9 something outside of the presence of the jury; is that
10 correct?

11 MS. RASMUSSEN: Yes. First of all, the
12 State completely complied with discovery pursuant to 22-3212.
13 The defendant requested, and the State provided the defense
14 with anything relevant to the case whatever pursuant to our
15 open-file policy.

16 The State just learned that the defense has several
17 exhibits they intend to admit, including photographs from
18 MySpace information. The State's position is that pursuant to
19 22-3212(c) that because the State complied with discovery, the
20 defense was under an obligation to allow the State to inspect
21 those things prior to the date of trial when they intended to
22 introduce them at trial.

23 The State's position is that those items should not be
24 admissible due to discovery violations. Some of them the
25 State is not opposed to. There are photographs of the home

1 generally that the State would get over the discovery
2 violation. The issue is there are also several MySpace
3 photographs purporting to be from Nick Koch's MySpace that the
4 defense intends to admit. It's the State's position that on
5 top of the discovery violation none of these items are
6 relevant in any way, shape or form. They are specifically
7 prohibited from being admissible under 60-422(d). There are
8 evidence of specific instances of conduct relevant to proving
9 a trait not related to truth or dishonesty, and just a trait
10 of his character.

11 So it's the State's position that these items are
12 inadmissible, and of the understanding that they may be used
13 in opening statement. So it's something I want to address now
14 because I think it would be very prejudicial if the jury
15 viewed them.

16 THE COURT: Mr. Regan.

17 MR. REGAN: They would be used in opening
18 statement. The diagrams and photographs will be referred to
19 in opening statement. The gravity that I think of Counsel's
20 complaint is of the Internet material we have found pertaining
21 to Nick Koch, who is the complainant in the case. The case
22 rises or falls on what he says, I believe. We have found that
23 as recently as last night, this kid is posting on the Internet
24 things such as his affiliation with the Order of Lucifer.
25 This may sound odd, I've never had this in my practice come

1 up, but this kid evidently in some statement and is a member
2 of some satanic cult, and there are certain commandments of
3 the Order of Lucifer. One of them is, "Thou shalt bear false
4 witness against thy neighbor." I think this kid belonged to
5 such a cult with one of the commandments is that is very
6 relevant.

7 The boy also posts stuff on the website, things that
8 described me, and we downloaded what they were, and they are
9 things that I think you or I and I think the jury as well will
10 find offensive. This kid is a Satanist, and he rejects
11 Christ. He rejects Christianity. He worships the Devil. The
12 State is going to bring in their star witness, and they are
13 going to have him in front of the jury raise his right hand
14 and take an oath to God, G-O-D. And this is a boy, who by his
15 own conduct and his own publishing, in a very unsecured
16 Facebook site is a worshipper of a dark God, not the one that
17 he is going to swear to testify in accordance with those
18 rules. I think it goes to his credibility, it's an essential
19 part of our case, and as far as the timeliness or disclosure,
20 it could be proven by turning on the computer and flashing the
21 Internet on the screen for the jury's convenience, or to have
22 a tangible item for appellate purposes, all we've done is have
23 them capture and take a picture of it.

24 THE COURT: This isn't anything you are
25 going to discuss in opening statement; is that correct?

1 MR. REGAN: No, no, ma'am. I was going to
2 intend to impeach Nick Koch with that when we get around to
3 that.

4 THE COURT: We'll have time for opening
5 statements yet this morning, and then we'll take lunch recess.
6 Have you provided all of that to the State?

7 MS. RASMUSSEN: I have had an opportunity
8 to observe it and look at it very briefly.

9 THE COURT: Why don't you take at lunch,
10 perhaps you can take a look at that, and we can take this up
11 prior to the admission of any evidence when we start at that
12 juncture. Is there anything further?

13 MS. RASMUSSEN: Nothing further by the
14 State.

15 MR. REGAN: No, ma'am, thank you.

16 (Whereupon, a recess was taken at 11:20
17 a.m., and proceedings resumed at 11:35 a.m.)

18 THE COURT: Let's bring the jury in.

19 We're on the record in the State versus Scott P. Moore,
20 Case Number 10CR2633. Parties appear as before. The jury is
21 in place. They have been sworn, chosen and sworn. We are now
22 ready for presentation of evidence, but first we will start
23 with opening statements, and the State may go first.

24 MS. JONES: May it please the Court,
25 Counsel, members of the jury, good morning. This is a case

1 about history repeating itself.

2 On May 14th, 2010, 16-year-old Nick Koch was staying the
3 night at the defendant's home that is located here in Johnson
4 County, Kansas. You see, Nick Koch and the defendant's son
5 were friends. Sleeping in the living room of the home that
6 night were Nick, the defendant's son and another friend,
7 Marcus Blanckensee. Nick was asleep on the couch, and in the
8 early morning hours of May 15th, 2010, he was awakened by a
9 flash of light. He tried to go back to sleep and was having
10 some difficulty. He was laying there.

11 A short time later he heard someone scurrying around.
12 Then he felt someone touch his penis over his clothing. Nick
13 heard the sounds of heavy footsteps scurrying out of the room
14 and going up the stairs where the defendant's bedroom was
15 located.

16 Nick noticed that his two friends were still sound asleep
17 in the living room. Nick believed that it was the defendant
18 who touched his penis. Nick got up and immediately called his
19 mother and left the defendant's home in the middle of the
20 night.

21 This incident jogged Nick' s memory to a separate
22 incident, so we're going to have to back up.

23 In December of 2009, five months prior to the May 15th,
24 2010, incident, Nick stayed the night at the defendant's home
25 with the defendant's son. Nick was sleeping on his stomach on

1 that same couch in the living room. Nick was awakened by
2 someone pushing the couch cushions down and touching his penis
3 area over his clothing. When Nick opened his eyes, he saw it
4 was the defendant who had touched him. The defendant told
5 Nick that he was sorry, that he was looking for the remote
6 control of the television. Nick dismissed the incident as
7 something innocent. Nick didn't think about this incident
8 again until he was touched the second time by the defendant in
9 May of 2010.

10 These two incidents of the defendant touching Nick Koch
11 are the two counts of sexual battery in this case that you are
12 going to hear. But wait, there's more.

13 During the course of the investigation in this case, it
14 was discovered that the defendant has a history of similar
15 behavior, so let's back up again.

16 MR. REGAN: Can we approach?

17 THE COURT: You may.

18 (Whereupon, the following proceedings were held at
19 the bench, out of the presence of the jury.)

20 MR. REGAN: I'm very, very sorry to
21 interrupt, but I'd like to renew my objection to as mentioned
22 the 60-455 evidence that it's our position that the
23 prejudicial value completely outweighs the probative value,
24 and I ask that the prosecution not be allowed to discuss
25 further in her opening statement, and I move for a mistrial.

1 THE COURT: This has been litigated several
2 times, and I will note your objection. I note the State's
3 response. The Court, Judge Ruddick, previously ruled that
4 that was coming in, and I have ruled likewise, and your
5 objection will be a continuing, and that objection will be
6 overruled.

7 MR. REGAN: Thank you, Judge.

8 MS. JONES: As I was saying before the
9 objection, during the course of the investigation into the
10 allegations in 2009 and 2010 incidents, it was discovered that
11 the defendant has a history of similar behavior.

12 So we have to step back again to November of 2006. The
13 defendant was a counselor for a church camp. The defendant
14 and other counselors took a group of boys to a church camp in
15 Linn County.

16 At the camp, 15-year-old Collin Williams was asleep on
17 his bunk when the defendant entered the room with a
18 flashlight. The defendant stood near the bunk beds, and what
19 Collin heard was the sound of snapping elastic as the
20 defendant stood near the bed of 15-year-old Tommy Chaney. The
21 defendant then began shining the flashlight to Collin and
22 reached under the bed. Collin sat up, and the defendant was
23 startled, and the defendant left the room.

24 Fifteen-year-old Bret Kingcade was also in that cabin
25 that night. He woke up in the morning to an unzipped sleeping

1 bag when he had zipped up the sleeping bag the night before.
2 He felt this was odd.

3 Sixteen-year-old Ben Gooding with also in that cabin that
4 night in November of 2006 when he saw the defendant with a
5 flashlight bent over a bottom bunk. The defendant left the
6 room when Collin Williams started to move.

7 The following night of this two-night church camp, Tommy
8 Chaney was asleep when he felt something poke him in the back.
9 Tommy, who was sleeping with a flashlight at that point turned
10 over and shined his flashlight and identified the person who
11 had touched him to be the defendant. The defendant fled the
12 room.

13 These November 2006 incidents were investigated by the
14 Linn County Sheriff's Office. While investigating the
15 November 2006 incidents it was discovered that there was more,
16 so let's back up again.

17 In November of 2005, the defendant was a counselor at a
18 church camp, that same church camp at Linn County that he had
19 been a counselor in 2006. Fifteen-year-old Jordan Galbraith
20 was awakened in the middle of the night to someone touching
21 his penis, and this was skin-to-skin contact. Jordan laid
22 still and pretended to be asleep. The person walked out of
23 the room only to return a short time later. That person was
24 the defendant.

25 This time when he returned, the defendant had a

1 flashlight. Jordan watched as the defendant shined the light
2 in the face and along the body of another camper. The
3 defendant's name was called out, and the defendant fled the
4 room.

5 Fifteen-year-old Kyle Heslop was also at this camp in
6 November of 2005, but he was sleeping in a different room than
7 Jordan was. The same night as the touching of Jordan, Kyle
8 was asleep on his bunk in his room, and he was awakened by the
9 defendant in his room with a flashlight. The defendant shined
10 the flashlight over the opposite bunk, and then shined his
11 flashlight on Kyle. The defendant then took his hand and
12 reached out to Kyle, and Kyle made a sudden movement that
13 startled the defendant. The defendant left the room.

14 The evidence of the 2005 and 2006 incidents is presented
15 in this case to prove the identity of the defendant, the
16 opportunity of the defendant, and that what defendant did to
17 Nick Koch was no mistake or accident. The defendant's actions
18 in touching Nick Koch in both December 2009 and May of 2010
19 were calculated, thought out, and planned. This evidence is
20 also presented to show that the defendant has a modus
21 operandi, an "MO", a particular way or method of doing
22 something. What the defendant did and was attempting to do in
23 2005 and 2006, that being touching teenage boys in the middle
24 of the night as they slept, is strikingly similar to what he
25 did to Nick Koch in 2009 and 2010. His actions are so similar

1 that they show the defendant had a plan, and his plan was
2 carried out in 2009 and 2010 when he, in fact, did touch Nick
3 Koch. History repeats itself.

4 At the end of this case, after you've heard all of the
5 evidence and you hear all about the defendant's actions, the
6 State will come back to you and ask that you find the
7 defendant guilty.

8 THE COURT: Mr. Regan, do you wish to
9 present an opening statement?

10 MR. REGAN: I do. Thank you. May it
11 please the Court, counsel for the State, let's get to work.
12 Let me tell you what this case is all about.

13 There's an old saying in trial work that no matter how
14 thin you pour a pancake, there's two sides to it. No matter
15 how thin the State pours the story, there's two sides to it.

16 Although they have only charged him with one case, I'm in
17 an unusual position of having to defend Mr. Moore, as he sits
18 here innocent today, in three cases. So you've got to play
19 with the cards you're dealt.

20 So let me try to tell you what the evidence is in all
21 three cases. Let's go back to 2005.

22 The evidence will be that Mr. Moore is not guilty of any
23 wrongdoing in 2005. The defendant's evidence is going to be
24 clear, and you're going to hear from a lot of people that were
25 there that investigated this thing, and there was no

1 wrongdoing found.

2 The evidence is going to be that Mr. Moore had a roommate
3 that night at the camp at the Youthfront cabin, and that he
4 was a leader in the leader's room, and he had a fair and
5 impartial witness that has no axe to grind in this case. The
6 guy is a great friend and wasn't close with one particular
7 kid, Dr. Childress, that was in the leader's room with him.
8 And you're going to hear that Dr. Childress does not recall
9 that night Mr. Moore leaving the room for any appreciable
10 period of time, especially when Jordan Galbraith says
11 something was going on in his cabin.

12 You're going hear what whatever went on in Galbraith's
13 room, not one person at the time identified Scott Moore as the
14 person that was in the room. The person that was in the room
15 had glasses. Mr. Moore wasn't wearing glasses.

16 Jordan Galbraith, you're going to see him. He's going to
17 be the State's chief witness as to 2005. He was a problem
18 kid. He had been disciplined earlier in the day for wearing a
19 shirt that said, "Got Semen," when Mr. Moore told him it was
20 inappropriate to be wearing it at a church camp. He had tried
21 to poke another kid in the eyeball with a pencil and was
22 disciplined in that. And you'll find that these kids'
23 testimonies and stories got tainted before law enforcement had
24 a chance to question and talk to them.

25 What you're going to see is that the church investigated

1 this thoroughly, and when the church was done, in the presence
2 of Jordan Galbraith's mom and dad, there was an apology to
3 Scott Moore saying this is a misunderstanding, and we're sorry
4 to get you involved with this. That was 2005.

5 In 2006, Mr. Moore was asked to come back. By the way,
6 the 2005 investigation was called in by Scott Moore. He
7 called in. You might call like in the military a military
8 strike on himself. He called the church and said, "These
9 allegations have been made by a kid at the breakfast table,
10 please come and look into it."

11 You'll hear from Ms. Meyer, Mr. Jost and Dr. Childress
12 that this was looked into and nothing was found to have
13 occurred.

14 We move on to 2006, Mr. Moore is asked to come back to
15 the church camp. At that time, something odd happened, it's
16 something right out of a kids' movie.

17 The girls from an adjoining camp had come in and raided
18 the boys' cabin and taken some things as a prank, which tells
19 you that at that time the cabin is not secure, and the boys
20 were talking about plotting revenge and getting something from
21 the girls' camp.

22 Mr. Moore was working that night, and these boys have
23 said whatever they have said, but when you watch what they
24 say, not one of them is going to tell you that they were
25 touched inappropriately or sexually. That's not what their

1 allegations were. They are going to say that they saw
2 somebody walk around the cabin, but nothing of a sexual nature
3 was said to have occurred.

4 So if we were trying these cases, and by the way, the
5 prosecutor forgot to tell you that the Linn County prosecutor
6 did not file these cases. Mr. Sutherland, who is the
7 prosecutor, reviewed the file and chose not to file it. I
8 would submit that he had a reason to not file the case because
9 there was no case.

10 So in case one, no one can identify who was in the room,
11 and Moore has an alibi with his roommate, the doctor. In case
12 two, no one was touched sexually.

13 Let's go on to what we're really here for. They have
14 charged that on two different occasions. I don't know why but
15 they have had two years to investigate the case, and they
16 still haven't given us a date in December when we supposedly
17 did something to Nicholas Koch. So Scott Moore and his family
18 have had to account every day for their activities because of
19 how the State is charging, December 1st to December 31st.

20 Well fortunately the Moores, like many of families, keep
21 a calendar about what's going on in the home. We know nothing
22 happened in December of 2009 because the families' unanimous
23 testimony is going to be subject to the State's
24 cross-examination that Nick Koch did not spend the night at
25 their house in December 2009.

1 Here's how they remember that. Number one, they don't
2 allow it during the school year, and finals came about
3 December 18th. The Koch kid goes to one school. Preston
4 Moore, who is an Eagle Scout, goes to another school.
5 Preston's finals took until about December 18th of that year,
6 and the family had a big family gathering for Scott Moore's
7 company at the time at the home, and the family had a New
8 Year's Eve party planned. And the family, most importantly,
9 had themselves going out of town for the Christmas holiday in
10 Mrs. Moore's sister's home in Carmel, California. So they
11 weren't here for Nick Koch to be here over the Christmas
12 holiday. I don't know what date he's going to come tell you
13 it happened on. The evidence will be he's refused to allow me
14 to interview him. His mother has refused me to interview him
15 or her. So I've got to take him cold when he gets on here.
16 But the evidence from good, law-abiding people is going to be
17 he didn't spend the night in that month in that year. And if
18 he didn't, this did not happen.

19 So let me get to Count II, which is why we're really
20 here. It is what I call "the big count case," this is it.
21 Nick Koch is going to come in here and have you believe
22 something happened on May 15th of 2010, which is the morning
23 after May 14th, which I believe was a Friday night.

24 This was an important moment in the Moore family that
25 summer. Mrs. Moore had worked hard to get a degree from Baker

1 University. She was graduating the next day in Baldwin City,
2 Kansas from Baker. Preston Moore's birthday was that week.
3 So they invited a selected group of Preston's buddies to go to
4 Old Chicago Restaurant and go to a local theater to watch *Iron*
5 *Man 2* at the theater.

6 The evidence will be that Mr. Moore and Preston and other
7 boys, there were other boys that were there that you won't
8 hear from that were there that night. And there was a
9 discussion between Mr. Nick Koch and Mr. Moore about some
10 trouble the boy was having at school.

11 The evidence will be Mr. Moore gave him some advice as a
12 scoutmaster and as a family friend. The evidence will be the
13 kid didn't like it and became resentful, quiet and sullen the
14 rest of night.

15 Here's what the evidence is going to be. The evidence
16 will be there were two other boys there. There was Marcus
17 Blanckensee that you will hear about and Preston Moore,
18 Scott's son, and Nick Koch. But there were two other boys
19 too. One boy live nearby and walked home, and another boy
20 needed a ride home about a mile away. The evidence will be
21 Scott Moore took him home one-on-one, and the inference would
22 be, if Scott Moore would be what they say he is, the
23 one-on-one would be where something would have occurred, and
24 there is no evidence.

25 Marcus, Nick and Preston go downstairs in the computer

1 room where the kids play games, and I think this Nick Koch boy
2 brought over some war games, and a game called "Nazi Zombies."
3 I'm 57 years old, and I don't know what these kids play. I
4 don't know what this game is about but that's what they were
5 playing. They are playing this game having a ball, and it's
6 time to go to bed.

7 The evidence will be that upstairs in the Moore's living
8 room, Mrs. Moore and Mr Moore are up there watching
9 television. The evidence will be that this is a very small
10 living room, that these folks were closer together than you
11 jurors are right now, that there's about eight feet from the
12 sofa where Nick Koch was laying to over here is across the
13 room where Marcus Blanckensee was laying. And then we have a
14 chair here where Scott Moore and Mrs. Moore were sitting and
15 watching television.

16 The evidence will be that there's a dog bed in front of
17 the TV, and the Moores have a big old dog named Marble that's
18 a Great Dane that comes up to here on me, and he's walking
19 around saying his hellos to everybody.

20 So Mr. and Mrs. Moore are over here sitting in chairs.
21 Marcus is over here. It's time for mom and dad to go to bed,
22 they go to bed and say goodnight. Nick refused to say
23 goodnight to Mr. Moore, and they go upstairs.

24 The evidence will be -- Heather told you that the boy
25 heard steps or heavy footsteps around the time he says he was

1 accosted. The evidence will be that this floor sits on a
2 concrete slab. You don't hear heavy steps because you can't
3 because there's no wood creaking. It's just cement. You
4 don't hear anything.

5 The evidence will be that there's a stairwell up here
6 going into Mr. Moore's bedroom where Mr. Moore and his wife
7 sleep. The bedroom was directly upstairs, and remember they
8 have a big graduation to get ready for the next day. They are
9 not thinking about this case and writing down notes. They are
10 getting ready for Mrs. Moore's graduation, a happy time in her
11 life. But the evidence will be that the stairs has rails in
12 it. So anyone going up or down can see what's going on in
13 this couch where Nick Koch is left asleep.

14 All right. The evidence will be that there's photographs
15 that kind of make this easy for you all to see where mom and
16 dad's chairs are here, Marcus is over here, and Nick is over
17 here. And as you can see, these quarters are rather tight.
18 Mom and dad go upstairs and go to sleep leaving downstairs
19 Marcus, Nick, and Preston.

20 The evidence will be from Marcus and Preston that they
21 saw nothing, heard nothing, felt nothing go on between Scott
22 Moore and their friend, Nick, nothing. They didn't see any
23 flash. They didn't hear any flash, and Preston is sitting
24 right next to the boy. He was awake. He didn't see, hear
25 anything. The evidence will be from Susan Moore that when

1 Scott came up to bed, he did not leave the bedroom again.

2 Here's where the story gets a little stranger. Scott is
3 up in bed, and Nick gets up and tells his buddies, "I'm
4 leaving, I don't feel good." Nick does not say, the evidence
5 will be, "Hey, Preston, your old man just put his hands on me.
6 I want to talk to him. I want to get my dad over here and
7 have a face-to-face conversation." He says, "I don't feel
8 well. I'll see you later."

9 The kids have Scouts the next Tuesday. Mrs. Moore sees
10 Ms. Koch, "Is Nick feeling better?" "Oh, he's doing a little
11 better." Not, "Your husband put his hands on my boy." The
12 last time Marcus was interviewed, Nick had not said anything
13 to Marcus, "Hey, you won't believe what Preston's dad did to
14 me." So the evidence from the defense side of the table
15 is going to be that Count I could not have happened because
16 the boy never spent the night. Count II didn't happen, and
17 that will come from the mouth from the testimony of his own
18 two very good friends.

19 At the close of all the evidence, I'm going to return and
20 ask you to render the only true verdict in this case, and that
21 is not guilty as to Counts I and II and ask you to return my
22 client to his family. Thank you.

23 THE COURT: It is 12:05 and a good time for
24 our lunch recess. I'll remind you not to discuss your
25 testimony with anyone, including among yourselves until the

1 end of the case. We're going to take about an hour and
2 fifteen minutes, and we'll reconvene at 1:15. When you do
3 come back, report to the jury room and convene there. We may
4 have a legal issue to take up outside your presence. The
5 lawyers will be here at 1:15.

6 Across the street with the clock tower, there's a
7 cafeteria in the basement there. There is Doughy's across the
8 street, or as you came along Santa Fe there's a lot of fast
9 food restaurants. If you want to get in your car and go, you
10 can. If not, there are places within walking distance.

11 (Whereupon, a lunch recess was taken at
12 12:05 p.m., and proceedings resumed out of the presence of the
13 jury at 1:20 p.m.)

14 THE COURT: We are back on the record in
15 State versus Scott Moore, 10CR2633. Parties appear as before.
16 The defendant appears with his counsel.

17 We are outside the presence of the jury, and the issue
18 had arose right before lunch regarding one of the State's
19 witnesses and inadmissibility of evidence, and we'll take it
20 up again outside the presence of the jury.

21 Let's talk first about the evidentiary evidence regarding
22 the State's witness, Mr. Koch?

23 MS. RASMUSSEN: Koch.

24 THE COURT: And this MySpace or Facebook
25 you have.

1 MS. RASMUSSEN: That's a good question. I
2 believe Mr. Regan may have used them interchangeably, but I
3 would believe it's MySpace, but they may have a better idea.

4 MR. REGAN: I'm told it's Facebook, Your
5 Honor.

6 THE COURT: And what is that you want to do
7 with that evidence, Mr. Regan?

8 MR. REGAN: Your Honor, there are several
9 items of evidence that we would like to admit for your
10 consideration. Do you want me to take them up one at time?

11 THE COURT: Yes. And do you have your
12 exhibits marked?

13 MR. REGAN: May I approach. We have a
14 witness list for you.

15 THE COURT: Yes.

16 MR. REGAN: And the exhibit list, Judge.
17 For trial purposes, we have had certain exhibits enlarged in
18 chambers. You have looked at the smaller copies in chambers,
19 but they are fair and exact enlargements. The exhibits
20 regarding the first topic is Satanic worship by the
21 complainant. We would be offering Exhibits 1 through 7,
22 including 7.

23 One is a face sheet espousing anti-Christianity views,
24 which I think you know what the content of that particular
25 exhibit says.

1 Exhibits 2, 3, and 4 are exhibits that basically glorify
2 Satan.

3 Exhibit 5 is a pentagram, which is kind of a ridicule of
4 Santa and the worship of the Devil.

5 And Exhibit 6 is a robe and key portrait of Satan and
6 illuminating exhibit, in our opinion, is Exhibit 6, Satanic
7 commandments, which encourage followers of Lucifer to do
8 several things: Kill, commit adultery and commit false
9 witness against one's neighbor.

10 Judge, I think it's relevant to this young man's
11 credibility that he belongs to a sect to encourage him to bear
12 false witness against his neighbor.

13 He's going to present himself as some lily white,
14 clear-as-day, clean-as-a-whistle kid, and we know he's not.
15 He's going to come in here in a minute and take an oath before
16 God that he'll tell the truth, the whole truth, and this guy
17 worships the anti-Christ, the opposite of what mainstream
18 believes, and I think I'm allowed to impeach him as to which
19 God he believes in, and what importance he's putting in his
20 oath to God today.

21 I think it's an important issue as to this kid's
22 credibility, and I think I should be allowed to go into it.

23 THE COURT: Number 7, with the commandment
24 about bearing false witness --

25 MR. REGAN: Yes, ma'am, that's there.